

		There are numerous service issues related to the various pleadings which require CC to 'start over' the motion process and ensure proper service. The Motion was improperly email served on pro per plaintiff Jun Li ("Plaintiff"). (ROA 10.) Unrepresented persons are exempt from mandatory electronic filing (<i>Civ. Proc. Code § 1010.6(g)(4)</i> and <i>CRC Rule 2.253(b)(2)</i>) and there is no evidence in the court's records that Plaintiff consented to receive electronic service of pleadings. CC also filed a late supplemental declaration after Plaintiff filed an opposition to the Motion, which would not permit Plaintiff to consider the statements and evidence therein when preparing the opposition. (ROA 21.) The supplemental declaration was also improperly served by email. As for Plaintiff's pleadings, Plaintiff filed an opposition and then a supplemental declaration three days later. (ROA 19, 22.) Plaintiff failed to file a proof of service for either pleading. As CC did not file a reply brief, it is not clear if this was a conscious choice by CC or if the opposing pleadings were never served on CC. As there are issues with improperly served and late filed pleadings, the court cannot consider the Motion on the merits as it is unclear what, if any, pleadings were served/received by the parties. The Motion is therefore DENIED without prejudice. If CC desire to have the Motion heard on the merits, they will have to start the process over and file a new motion and properly serve Plaintiff. Plaintiff is also notified that he must file proofs of service pursuant to code requirements showing service of pleadings on CC. If Plaintiff does not serve proofs of service in the future, he risks the court refusing to consider said pleadings. <i>Counsel for CC is ordered to serve notice of the ruling.</i>
3.	Gooding v. Hout 22-1271459	(Moot)
4.	Keno Capital, LLC v. Oakleaf Holding LLC 23-1313683	(Moot)
5.	Mott v. Fortiva Financial, LLC 25-1476893	(Moot)
6.	Fernandez v. Pacific Life Insurance Company 25-1520544	Before the Court is a demurrer by defendant Pacific Life Insurance Company (Pacific Life) as to the complaint filed by plaintiffs Janeth Fernandez, Eriberto Fernandez and Luis Alberto Medina Larios. For the reasons set forth herein, the demurrer is OVERRULED as to the 1st, 4th and 5th causes of action and SUSTAINED as to the 2nd and 3rd causes of action, with 14 days leave to amend. A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the